

HOUSE No. 3637

The Commonwealth of Massachusetts

PRESENTED BY:

Mike Connolly

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act implementing free public transit.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 3637

By Representative Connolly of Cambridge, a petition (accompanied by bill, House, No. 3637) of Mike Connolly relative to implementing free public transit. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3287 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act implementing free public transit.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 10 of the General Laws is hereby amended by inserting after
2 section 35PPP the following section:-

3 Section 35QQQ. (a) There shall be set upon the books of the commonwealth a separate
4 fund to be known as the Public Transportation Affordability Fund to be administered by the
5 Massachusetts Department of Transportation. There shall be credited to the fund: (i) amounts
6 collected pursuant to clause (v) of paragraph (2) of subsection (a) of section 39 of chapter 63; (ii)
7 all revenues or other financing sources directed to the fund by appropriation, including revenues
8 collected pursuant to Article CXXI of the Massachusetts Constitution; and (iii) any income
9 derived from the investing of all amounts credited to the fund. Monies credited to the fund may
10 be expended by the Massachusetts Department of Transportation to the Massachusetts Bay

Transportation Authority established pursuant to section 2 of chapter 161A, and regional transit authorities, established pursuant to section 3 of chapter 161B, without further appropriation, for the purpose of funding free public transportation services.

(b) The department shall annually file a report with the governor, clerks of the house of representatives and the senate and the joint committee on transportation detailing the activity of the fund.

SECTION 2. Paragraph (2) of subsection (a) of section 39 of chapter 63 of the General Laws, as so appearing, is hereby amended by striking out the words “or (iv) for tax years beginning on or after January 1, 2012, 8.0 per cent of its net income determined to be taxable in accordance with this chapter” and inserting in place thereof the following words:- (iv) for tax years beginning on or after January 1, 2012, 8.0 per cent of its net income determined to be taxable in accordance with this chapter; or (v) for tax years beginning on or after January 1, 2025, 8.75 per cent of its net income determined to be taxable in accordance with this chapter; provided, however, that an amount equal to 0.75 per cent of the business corporation’s net income determined to be taxable pursuant to this section shall be deposited in the Public Transportation Affordability Fund.

SECTION 3. Chapter 161A of the General Laws is hereby amended by adding the following 2 sections:-

Section 53. Notwithstanding any general or special law to the contrary, the authority shall not collect a fare from riders for the use of bus transportation services.

31 Section 54. Notwithstanding any general or special law to the contrary, the authority shall
32 not collect a fare from riders for the use of rapid transit, light rail or commuter rail transportation
33 services.

34 SECTION 4. Chapter 161B of the General Laws is hereby amended by adding the
35 following section:-

36 Section 28. Notwithstanding any general or special law to the contrary, no regional transit
37 authority shall collect a fare from riders for the use of bus transportation services.